

Judgment Sheet.

IN THE LAHORE HIGH COURT, LAHORE.
JUDICIAL DEPARTMENT.

Writ Petition No. 25654 of 2025.

(Muhammad Akhtar. Vs Deputy Commissioner, Khushab & 03 others)

J U D G M E N T.

<u>Date of Hearing.</u>	<u>20.05.2025.</u>
<u>Petitioner by:</u>	Malik Muhammad Azam Awan, Advocate.
<u>Respondent Nos.1 & 2 by:</u>	Mr. Ahsan Rasool Chatha, A.A.G. along with Ms. Farva Aamir, Deputy Commissioner and Zia Ullah, Assistant Commissioner, Khushab.
<u>Respondent No. 3 by:</u>	M/s Malik Noor Muhammad Awan, Rana Muzaffar Hussain and Ahmad Yar Chawli, Advocates.
<u>Respondent No.4.</u>	Nemo.

KHALID ISHAQ, J:- Brief facts of the case in hand are that a vacancy for the appointment of Village Headman of Mauza Rodha Tehsil & District Khushab had occurred due to the death of the then Village Headman, namely, Haji Muhammad Ameer on 10.03.2018 (the “**Vacancy**”). The process for filling up the Vacancy was initiated by requisition of reports from the revenue hierarchy. The petitioner, as well as, respondent Nos. 3 & 4 of this petition applied for the Vacancy. The scrutiny and evaluation of the candidates was conducted in accordance with the mandate of *Land Revenue Act, 1967* (the “**Act**”) and the *Land Revenue Rules 1968* (the “**Rules**”), as amended *vide* Notification No. 881-2010/397-LR-2010 dated 20.04.2010 (“**Notification**”); Tehsildar Khushab generated its report No. 322 dated 23.05.2023 (“**1st Report**”) viz the eligibility, fitness and evaluation of all three candidates, which report was forwarded to the Assistant Commissioner, Khushab (**Respondent No. 2**). As per 1st Report, the petitioner secured highest

marks (95/100), whereas, the Respondent Nos. 3 & 4 were lagging behind by securing 35/100 & 60/100 marks, respectively. The extract of the 1st Report, reflecting the marks obtained by all three candidates in respective categories as per rule 17(1) of the Rules is reproduced below:

شماره	نام ایدوا -	مختبر و روش	آنتی بیوتیک	تعیین	کد	ماده	رقم	توضیح
1	مهاخت و ایدوا بید	30	30	10	10	5	10	95
2	دوست محمد و ایدوا بید	-	-	10	10	5	10	35
3	منظریه و ایدوا بید	-	30	5	10	5	10	60

10-5-23
 No: 296/NT
 18-5-23

2. While considering and agreeing with the 1st Report, Assistant Commissioner, Khushab/Respondent No. 2 proceeded to award the same marks to all three applicants and forwarded his Report No. 711/AC dated 04.07.2023 (“**2nd Report**”) to the District Collector, Khushab (**Respondent No.1**). Both these reports were considered by Respondent No.1, who acted in a strange arbitrary and fanciful manner and passed the order dated 30.10.2024 (“**Impugned Order**”), whereby he sought fresh reports from the revenue hierarchy without any plausible basis or reasons. Since the Impugned Order is of paramount importance for the determination of the case in hand, therefore, the same is reproduced herein below:

”تقرری نمبر دار موضع روڈھا۔

30.10.2024

مثل پیش ہوئی۔ آواز دلائی گئی۔ امیدواران عہدہ نمبر داری بذریعہ کونسلز حاضر۔ تفصیلی سماعت ہوئی۔ نقولات ازاں کونسلز فریقین پیش کی گئیں۔ کونسل شیر شاہ اعوان ایڈووکیٹ نے نقل FIR برخلاف محمد اختر امیدوار عہدہ نمبر داری پیش کی۔ کونسل محمد اختر کی جانب سے تحریری بحث بھی داخل ہوئی۔ ملاحظہ مثل سے پایا گیا ہے کہ ہر سہ امیدواران کو فارمنگ کے پانچ پانچ نمبر دیئے گئے ہیں

جس کی کوئی Justification رپورٹ اسسٹنٹ کمشنر میں نہ دی گئی ہے۔ مثل ہذا اسسٹنٹ کمشنر خوشاب کو اس ہدایت کے ساتھ

بھجوائی جاتی ہے کہ وہ موجودہ حالات کو مد نظر رکھتے ہوئے مندرجہ بالا نکات اور امیدواران کی اہلیت کے بارے میں ہر پہلو کی روشنی میں مفصل رپورٹ مع واضح رائے اندر (14) یوم عدالت ہذا میں ارسال کریں۔

دستخط
ڈپٹی کمشنر
خوشاب“

[Emphasis Supplied]

3. A challenge to the Impugned Order was laid before this Court by way of the Constitutional Petition in hand, which was taken up for hearing on **30.04.2025** and notices were issued, directing the Respondent Nos. 1 & 2 to file report and parawise comments, explaining the rationale of the Impugned Order. The report/parawise comments were filed, which assert that since in furtherance of the Impugned Order, two more reports i.e. reports bearing No. 501/NT dated 24.04.2025, prepared by Naib Tehsildar, Khushab (“**3rd Report**”), and report bearing No. 1081/AC dated 24.04.2025, prepared and forwarded by Respondent No. 2 (“**4th Report**”) were generated by the revenue hierarchy and while considering the same, the Respondent No.1 has appointed Dost Muhammad (**Respondent No.3**) as Village Headman vide order dated 26.04.2025 (the “**Appointment Order**”), therefore, apparently this petition has become infructuous. It is pertinent that even the “**3rd & 4th Reports**, depict that the marks of the Petitioner as (90/100), whereas, Dost Muhammad (Respondent No.3) and Zafar Abbas (Respondent No.4) lagged behind by securing only 55/100 & 50/100 marks, respectively.

4. While representing the official respondents, learned Law Officer has vehemently argued that since the process of appointment has already been culminated by the dint of the Appointment Order issued on **26.04.2025**, prior to taking cognizance of the matter by this Court on **30.04.2025**, therefore, the petition merits dismissal. In order to explain the rationale for appointment of Respondent No.3 as Village Headman, who secured 55/100 marks as compared to 90/100 marks of the Petitioner, learned Law Officer has overwhelmingly relied upon rule 18(2)(e) of the Rules, as also manifested from the Appointment Order, to

argue that since the Petitioner has been rendered disqualified in terms of the said rule, therefore, the next best candidate has been appointed as such.

5. Respondent No.3 entered appearance through his counsel, who made submissions on the same premise, as argued by the official respondents. Learned counsel further contended that since the substantial developments have taken place subsequent to the issuance of the Impugned Order and Respondent No.3 has been appointed as Village Headman vide order dated 26.04.2025, which Appointment Order has not specifically been impugned in this petition, therefore, this Court cannot set-aside the Appointment Order and any interference in this regard would amount to exercise of *suo motu* jurisdiction by this Court, which jurisdiction is not available with this Court on the basis of well settled law on the subject. Reliance in this respect was placed upon the case of “Mian Irfan Bashir v. The Deputy Commissioner (D.C.), Lahore and others” (PLD 2021 SC 571). Learned counsel for Respondent No.3 further argued that the discretion of appointment of Village Headman vests with the revenue hierarchy and since they are the best judge as to the fitness and eligibility for such appointments, therefore, the decision made by them does not warrant interference by this Court. Reliance was further placed on the cases reported as “Haji Muhammad Zaman Khan v. Member, Board of Revenue Punjab and others” (2014 SCMR 164), “Muhammad Rafique v. Nazir Ahmed and others” (2007 SCMR 287), “Mirza Fayyaz Brig v. Hafiz Abdul Yousaf and others” (1994 PLC (CS) 1201), “Abdul Majeed v. Noor Muhammad and 2 others” (PLD 2006 Lahore 649), “Mian Aurangzeb Noor v. Rent Controller, Lahore and another” (2012 CLC 1729), “Muhammad Amir v. Naeem Arshad” (NLR 2001 (Revenue) 97) and “M. Nazir Ahmad v. Muhammad Aslam and others” (2013 SCMR 363).

6. Arguments heard. Record perused.

7. Since the respondents have raised objections viz the exercise of jurisdiction by this Court and have coined these proceedings as exercise of *suo motu* jurisdiction, therefore, this issue has to be decided ahead of all other questions. This Court is conscious of the settled law on the

subject by virtue of authoritative pronouncements of the Hon'ble Supreme Court of Pakistan¹. In order to appreciate the substance of the submission, the judgments rendered by the Supreme Court of Pakistan have been minutely considered by this Court. In the case of Federal Government Employees Housing Authority² the Supreme Court of Pakistan, adverted to the question of exercise of *suo motu* jurisdiction of Islamabad High Court, reproduced all the prayer clauses of the petitions which were filed before the Islamabad High Court, and finally held as under:

“11. Hence, the basic crux of the Petitioners’ arguments before us is that the Impugned Judgment has decided against the Revised Policy suo motu, which was not within the jurisdiction of the High Court as the said Policy was never challenged. Hence, the question is whether the High Court has the power to on its own declare the Revised Policy as unlawful and illegal.”

Similarly, the facts of the case of Sadiq Poultry³ are that being aggrieved of the prices and quality, *inter-alia*, of poultry products/dairy products, the petitioners approached the Peshawar High Court and filed a Constitutional Petition; the Peshawar High Court passed various orders in the Petitions, which orders were finally assailed before the Supreme Court of Pakistan; while considering the facts of the case and law on the subject, the Supreme Court proceeded to pass the judgment in *Sadiq Poultry supra*, the relevant paragraph whereof is reproduced herein below:

“6. It is settled law that the High Court does not have suo motu jurisdiction under Article 199 of the Constitution of the Islamic Republic of Pakistan (the "Constitution") as compared to this Court which has been conferred exclusive jurisdiction in

¹ “Federal Government Employees Housing Authority through Director General, Islamabad v. Ednan Syed and others” (PLD 2025 SC 11), “Hafsa Habib Qureshi and others v. Amir Hamza and others” (PLD 2024 SC 780), “Messrs Sadiq Poultry (Pvt.) Ltd v. Government of Khyber Pakhtunkhwa through Chief Secretary and others” (PLD 2023 SC 236), “Abdullah Jumani and others v. Province of Sindh and others” (2024 SCMR 1258), “Taufiq Asif and others v. General (Retd.) Pervez Musharraf and others” (PLD 2024 SC 610), “Mian Irfan Bashir v. The Deputy Commissioner (D.C.), Lahore and others” (PLD 2021 SC 571), “Raja Muhammad Nadeem v. The State and another” (PLD 2020 SC 282), “Dr. Imran Khatak and another v. Ms. Sofia Waqar Khatak, PSO to Chief Justice and others” (2014 SCMR 122) & “Jahanzaib Malik v. Balochistan Public Procurement Regulatory Authority through Chairman Board of Directors and others” (2018 SCMR 414).

² “Federal Government Employees Housing Authority through Director General, Islamabad v. Ednan Syed and others” (PLD 2025 SC 11).

³ “Messrs Sadiq Poultry (Pvt.) Ltd v. Government of Khyber Pakhtunkhwa through Chief Secretary and others” (PLD 2023 SC 236).

the matter by the Constitution in terms of Article 184(3). Reliance in this regard is placed on Mian Irfan Bashir v. Depute Commissioner (D.C.), Lahore (PLD 2021 SC 571). The prayer of the private respondents was essentially limited to the pricing of products. To the contrary, the learned High Court passed a series of suo motu orders, such as the orders dated 25.02.2021 and 01.07.2021, whereby a ban was imposed on the export of dairy and poultry products. It is pertinent to mention here that banning imports or exports of products is not the domain of the Courts but falls under the exclusive domain of the executive. The learned High Court could not have transgressed its jurisdiction under Article 199 of the Constitution by passing an order which not only amounts to exercise of suo motu jurisdiction, but also an encroachment on the jurisdiction of the executive.”

Likewise, the case of **Abdullah Jumani**⁴ has its own peculiar facts. The petitioners of the Constitutional Petitions filed before High Court of Sindh at Karachi sought regularization of their service, however, while deciding the Constitutional Petitions, the High Court proceeded to consider the vires of the Regularization of *Ad-hoc and Contract Employees Act, 2013* (the “**Act, 2013**”) and imparted a number of opinions viz the vires of the Act, 2013 and also issued directions, which prejudiced the rights and interests of numerous employees already regularized or were under consideration in terms of the provisions of the Act, 2013, who were not a party in the proceedings before High Court. It was in these circumstances that following observations were made by the Supreme Court of Pakistan while discussing various judgments on the issue of bar of exercise of *suo motu* jurisdiction by High Court, including the one referred to by learned counsel for respondent No.3:

“16. In fact, the case before the High Court was to consider whether the petitioners are entitled for regularization of their services and obviously, if no case was made out, the petitions could have been dismissed. Here, however, not only were the petitions dismissed but the law was also declared ultra vires which disturbed and traumatized a long chain of employees who are regularized or were being regularized since 2013 by the Government of Sindh in its different departments/ministries

⁴ *“Abdullah Jumani and others v. Province of Sindh and others” (2024 SCMR 1258).*

under the same law. The impugned judgment has deprived a long chain of employees and virtually made them jobless without providing any right of audience to them which was a grave violation of Article 10-A of the Constitution and also amounts to the contravention of the principle of natural justice and due process of law”

8. Reverting to the judgment referred by the learned counsel for respondent No.3 i.e. **Mian Irfan Bashir** *supra*,⁵ the precise facts which formed the basis for the opinion rendered, are evident from paragraph No.1 of the judgment, which is reproduced herein below:

“As a matter of background, The Mall Road Traders Association, approached the constitutional jurisdiction of the High Court to challenge Notice dated 16.07.2018 issued by the Zonal Officer (Regulation) Metropolitan Corporation, Lahore for the removal of signboards and advertisements from their shops within 24 hours. Learned Single Bench of the High Court while dealing with this issue in Order dated 20.12.2018 thought it best to also discuss and pass directions on to a totally different issue, which was not even before the Court, regarding wearing of helmets by motorcyclists plying their bikes on the Mall Road. Without there being any dispute before it, the Court examined the compliance by the motorcyclists of wearing helmets when plying their bikes on the Mall Road. The Court was informed that 99% motorcyclists were now wearing helmets. As if this was not enough, the Court exercising suo motu powers, passed the following direction in paragraph 13 of order dated 20.12.2018:

"13. ... Today, it is also ordered, that the petrol pumps shall not fill in the petrol tanks of the motorcyclists who have not worn the helmets and in case any owner of the filling station is found to provide the petrol to those motorcyclist, the petrol pump will be sealed and heavy fine will be imposed. It has also been reported that some of the petrol pumps are providing helmets for few minutes i.e. during pouring the petrol, just to flout the order of this Court, therefore, in case if any owner of petrol pump is found doing this, he will be dealt with iron hands of law." (emphasis supplied)

The petitioners assailed this part of the Order in appeal (ICA) before the learned Division Bench of the High Court, who vide impugned

⁵ *“Mian Irfan Bashir v. The Deputy Commissioner (D.C.), Lahore and others” (PLD 2021 SC 571).*

order dated 24.01.2019 dismissed the appeal and upheld the Order of the learned Single Bench in the following manner:

"3...It is not denied by the learned counsel that every person riding a motorbike is required by law to wear a helmet. If that is so, the direction given by learned Single Judge in Chambers is not unlawful rather it is in accordance with law. (emphasis supplied)

It was in view of the above facts that the concept of judicial overreach, as well as, the bar of exercise of *suo motu* jurisdiction by the High Court was enunciated by the Supreme Court in the above referred case. Similarly, the facts of **Pervez Musharraf**⁶ *supra* are clearly distinguishable from the facts of the case in hand and manifest unwarranted exercise of *suo motu* jurisdiction therein, which led to the findings rendered by the Supreme Court of Pakistan, declaring that such *suo motu* exercise of jurisdiction was untenable.

9. A latest judgment of the Supreme Court of Pakistan in the case of **Hafsa Habib Qureshi**⁷ *supra* is also of vital importance for determining the contours of the bar of exercise of *suo motu* jurisdiction by the High Court. Relevant paragraphs of the said judgment are reproduced herein below:

"8. Many legal systems throughout the world retain the use of Latin words or phrases that originated centuries ago in the legal system of ancient Rome. The term 'suo motu' is one of those. It means 'on its own motion' or 'voluntarily'. In the context of a court or legal proceedings, 'suo motu power' refers to the inherent authority of a court to initiate legal proceedings or take action on its own accord without being prompted by a party involved in a case. In Collins English Dictionary, the term 'suo motu' is defined as 'on its own motion' and the term generally refers to a situation wherein a judge acts without request by either party to the action before the Court.

When a court exercises suo motu power, it means the court is acting on its own initiative, often to address a matter it deems important or to ensure that justice is served. This authority allows the court to intervene in certain situations even if no formal complaint has been filed. Suo motu power is often invoked in cases where there is a perceived violation of law and fundamental rights, public interest, or the principles of justice as this Court is empowered under Article 184(3) of the Constitution. However, in this case, the Peshawar High Court did not initiate the present proceedings on its personal knowledge, information or through a press

⁶ *"Taufiq Asif and others v. General (Retd.) Pervez Musharraf and others"* (PLD 2024 SC 610).

⁷ *"Hafsa Habib Qureshi and others v. Amir Hamza and others"* (PLD 2024 SC 780).

clipping, or a note put up by its Registrar. Instead, the proceedings have been commenced on the basis of a complaint filed by an individual who considers himself aggrieved by the alleged cheating in the MDCAT. There is no doubt that the High Court lacks supervisory control over the provincial government or the admitting university, as it does with respect to subordinate courts under Article 203 of the Constitution. Therefore, no complaint alleging illegality on the part of or violation of law committed by the provincial government could be made to the High Court. The said complaint, in all respects, is a writ petition, although questions may arise regarding the non-observance of the formalities prescribed for drafting and filing the writ petition before the High Court.

9. *Besides, the High Court has the power to convert and treat one type of proceeding into another type. After doing so, it can proceed to decide the matter itself, provided it has jurisdiction over the issue, or it may remit the matter to the competent authority, forum, or court for a decision on its merits. Reference in this regard may be made to the cases of Muhammad Akram v. DCO, Rahim Yar Khan and others (2017 SCMR 56); Sher Alam Khan v. Abdul Munim and others (PLD 2018 Supreme Court 449); and the Commissioner of Income Tax (Legal) RTO, Abbottabad v. Messrs Ed-Zublin AG Germany and another (2020 SCMR 500).”*

10. It was in above set of facts and grounds of each case that the Supreme Court of Pakistan has authoritatively settled the law viz the bar of exercise of *suo motu* jurisdiction by the High Court and consequently declared the same as unlawful. In order to appreciate the submissions of the learned counsel for Respondent No.3, the facts and prayer of the case in hand are required to be juxtaposed with the *ratio decidendi* of the above judgments of the Supreme Court of Pakistan, for which purpose, the prayer clause of the constitutional petition in hand is reproduced herein below:

“In view of the above submissions it is most humbly prayed that this writ petition may kindly be accepted, the impugned order dated 30.10.2024 of respondent No.1 be set aside and the respondent No.1 be directed to appoint the petitioner as Lumberdar of Roda Tehsil and District Khushab, in the best interest of justice, equity and fair play.

It is further prayed that pending decision of the titled writ petition the operation of the impugned order may very kindly be suspended.

Any other relief which this Honourable Court deems fit and proper in the circumstances of the case may also be granted.”

11. Having noticed the prayer clause, the following facts are also germane for the determination of the issue in hand, which facts shall conclusively reflect that the official respondents have not only blatantly defeated the very essence of the applicable Rules but have also attempted to frustrate these proceedings by unlawfully and illegally issuing the Appointment Order in an unholy haste:

i) It is evident from the record that the Vacancy had occurred in 2018 and the matter was kept pending for almost 05 years. It was only after the issuance of the 1st Report on **23.05.2023** that the process for appointment of the Village Headman was set in motion.

ii) The record further reflects that a *Jalsa-e-Aam* was conducted by the Assistant Commissioner on **09.06.2023** in terms of rule 17(2) of the Rules for the purpose of recommending a suitable candidate to the District Collector in terms of the applicable Rules.

iii) Based on the proceedings conducted in *Jalsa-e-Aam* on 09.06.2023, the 2nd Report was generated by the Assistant Commissioner on **04.07.2023**.

iv) The matter remained pending with the District Collector Khushab (Respondent No. 1) for about 04 months when he proceeded to issue the Impugned Order on **30.10.2024** and called for a fresh report **within fourteen days**.

v) No progress was made for more than six months i.e. from **30.10.2024 to 24.04.2025**, and suddenly the 3rd Report dated 24.04.2025 had emerged before this Court by way of an annexure of the parawise comments. This 3rd Report does not reflect that any *Jalsa-e-Aam* was conducted for the re-evaluation and re-assessment of the suitable candidate, however, the marks obtained by each of the candidates are reflected as 90/100 of the petitioner, 55/100 of Respondent No.3 and 50/100 of Respondent No.4. The

only addition made through this 3rd Report is mention of an FIR bearing FIR No. 53/2024, registered on 08.02.2024 with Police Station Mitha Tiwana Khushab (**FIR**) which includes the name of the petitioner as one of the many accused persons.

vi) Ironically this 3rd Report is shown to have been forwarded to the Assistant Commissioner **on the same day i.e. 24.04.2025.**

vii) As evident from the comments filed before this Court, a purported 4th Report dated 24.04.2025 was set rolling with an unprecedented speed, whereby, while purportedly invoking rule 18(2)(e) of the Rules, the purpose of defeating the mandate of law and Rules was achieved by declaring the petitioner as disqualified on the basis of being an accused in the FIR. Needless to observe that during the course of hearing, the respondents were repeatedly given an opportunity to point out the alleged role of the petitioner in the FIR, which was allegedly registered on the election night, however, the respondents were not even able to read the contents of the FIR as it has literally been registered against innumerable persons.

viii) This 4th Report was forwarded to the District Collector, who previously took almost four months to consider the 2nd Report forwarded by the Assistant Commissioner and passed the Impugned Order thereon in a flimsy and whimsical manner, this time proceeded to issue the Appointment Order on 26.04.2025, palpably in less than 48 hours from the issuance of 3rd Report by the Naib Tehsildar, Khushab.

12. Respondent No. 1 and 2 were present in Court but they, like the learned law officer, were unable to explain as to the very genesis of the Impugned Order, which Order then paved the way for fetching this old aged idea of disqualification on the novel touchstone of invocation of rule 18(2)(e) of the Rules against the Petitioner. Considering the well settled law on the subject viz the bar or exercise of *suo motu* jurisdiction by the High Court while juxtaposing the prayer made in this petition, the facts explicated above as well as the legality of the Impugned Order, the

only conclusion which emerges is that the conduct of the Respondent clearly smacks *mala fide*; it is evident that the official Respondents have acted on the basis of extraneous considerations, violated the Rules and failed to conduct themselves in a fair and transparent manner, therefore, the contention of the learned Counsel for the Respondent No. 3 that further proceeding in this case is in the nature of *suo motu* exercise of jurisdiction, is not only misconceived and ill-founded but also an attempt to defend inchoate, arbitrary and illegal actions of the respondents, being a beneficiary of the same.

13. It is reiterated at the cost of repetition that this petition was taken up for hearing on 30.04.2025, when the notices were issued to the respondents to explain as to how a candidate securing 95/100 marks, has not been appointed and his appointment was defeated merely on the basis of self-invented but inherently destructive rationale of ascertaining the basis for award of 05 marks against the category of quality of farming; it was specifically noted in the order dated 30.04.2025 that even if these marks of farming are subtracted from the total tally of the petitioner, his total marks would remain 90/100, which are far higher than the marks of runner up (Respondent No.4) *i.e.* 60/100 marks. The only basis, as miserably invented by the respondents, for disqualifying the petitioner, is the misconceived reliance upon rule 18 2(e) of the Rules. For the sake of convenience, the said rule is reproduced herein below:

“18. Dismissal of headman.-(1)-----

(2) A headman may also be dismissed when-

(a) -----

(b) -----

(c)-----

(d)-----

(e) he takes part in any unconstitutional agitation against the Government or fails to give his active support to the Government in the maintenance of law and order”

While banking upon such false pretense, the respondents have failed to appreciate that the disqualification provisions will only trigger once an appointed Village Headman indulges into illegal activities enumerated in in rule 18(2)(e) of the Rules. Be that as it may, it is also

trite that mere registration of a case does not attract disqualification of an office bearer and only a conviction entails the crystallization of disqualification.

14. As regards the submissions of the learned counsel for respondents that the exercise of discretion by the revenue hierarchy is unassailable in this case, the said submission is also devoid of any merits. The concept of exercise of discretion and interference therein is well settled. The exercise of discretion in its legal context implies power to make a choice between alternative courses of action or inaction. If only one course can lawfully be adopted, the decision taken is not the exercise of a discretion. To say that somebody has a discretion presupposes that there is no unique legal answer to a problem. There may, however, be a number of answers that are wrong in law and even in cases where the power is discretionary, circumstances can exist which mean the discretion can only be exercised one way. There are degrees of discretion, varying the scope of maneuver afforded to the decision maker. In facts and circumstances of the case in hand, particularly in the wake of the amendment of the Rule 17 by virtue of the Notification of 2010, the discretion of the revenue hierarchy has specifically and purposely been structured. Buying the argument of the learned counsel for the respondent tantamount to defeat the very purpose and essence thereof. It is for these patently illegal executive's actions that the power of judicial review has been conferred upon this Court under Article 199 of the Constitution. Obligation to act fairly on the part of administrative authority has been evolved to ensure the rule of law and to prevent failure of justice. Object of good governance cannot be achieved by exercising discretionary powers unreasonably or arbitrarily⁸, as has been done in this case. The record of this case clearly reflects *mala fide* on the part of respondents. In golden words of **B.Z. Kaikaus, J.**⁹ "*A mala fide act is by its very nature an act without jurisdiction. No legislature when it grants power to take action*

⁸ "*Federation of Pakistan through Secretary Ministry of Communications, Islamabad and another v. Shuja Sharif and others*" (2023 SCMR 129) & "*Shahray Khan (Deceased) through LRs. And others v. Qadir Bakhsh (Deceased) through LRs. and others*" (2023 SCMR 201).

⁹ "*Abdul Rauf and others v. Abdul Hamid Khan and others*" (PLD 1965 SC 671).

or pass an order contemplates a mala fide exercise of power. A mala fide order is a fraud on the statute. It may be explained that a mala fide order means one which is passed not for the purpose contemplated by the enactment granting the power to pass the order, but for some other collateral or ulterior purposes.” Considering the Impugned Order and the Appointment Order on very basic standards of fairness and administration of justice, the same are grossly illegal and unlawful and if allowed to sustain, it amounts to militate against rule of law. Judicial review of the Impugned Order and consequent Appointment Order, is well within the scope of exercise of power of judicial review of this Court under Article 199 of the Constitution. Judicial review of the exercise of discretion is determined mainly by the wording of the power and different formulae to confer discretion and to guide the exercise of that discretion. Sometimes, a statute exhaustively specifies the way in which a discretion may be deployed, such as by enumerating the types of conditions which a Court or authority may consider, as required in the case of appointments per rules, particularly rule 17(1) of the Rules. Sometimes, however, the exercise of a statutory discretion is not limited by the express provisions of the Act and in those cases the Courts embark upon an interpretation of the objects and purpose of the statutes in order to identify the limitations to which the discretion is subject¹⁰. It is equally well settled in our jurisprudence that exercise of discretionary power has its own circumspections and law recognizes no such thing as an unfettered discretion. All discretionary powers, especially that as conferred by statute, must be exercised in terms of well-established principles of Administration of Justice and Law.¹¹ The Supreme Court of Pakistan has authoritatively settled that all judicial, quasi-judicial and administrative authorities must exercise power in a reasonable manner and also must ensure justice as per the spirit of law and

¹⁰ *De Smith's Judicial Review* (7th Ed., p. 244), published by THOMSON REUTERS

¹¹ *“Commissioner Inland Revenue, Karachi v. Pakistan Beverages Limited, Karachi”* (2018 SCMR 1544).

the established instruments regarding the exercise of discretion¹². The reliance may also be placed on a recent authoritative pronouncement of the Supreme Court in the case of **Akhtar Tanveer and others**¹³, wherein while expounding the contours of exercise of judicial discretion, the Supreme Court of Pakistan has held that: “*Judicial discretion must be exercised judiciously and transparently, based on established principles and sound reasoning. As Lord Woolf stated, discretion enables the court to achieve justice on a case-to-case basis while respecting the framework of legal rules. This balance enhances justice and will reduce litigation and the overturning of decisions by this Court, thus increasing predictability and certainty, both of which are crucial aspects in upholding the rule of law and maintaining public confidence in the legal system. This cohesive harmony is not possible if discretion is exercised arbitrarily, without adhering to settled principles in law as established by this Court and by ignoring principles of fairness, equity and adherence to law.*”

15. The issue of exercise of discretion and structuring of the same in the process of appointment of Village Headman by way of the amendments brought about in 2010 has also been settled by a Division Bench of this Court in **Ahsan Khan’s** case¹⁴, which judgment has been upheld by the Supreme Court of Pakistan. The relevant extract from *Ahsan Khan’s case supra* is reproduced herein below:

15. The Board of Revenue has, perceptibly, enunciated the legislative policy with clarity and in structured manner by laying down the clear standards. **Marks are allocated to every qualification and factor, essentially curtailing discretionary powers of the individual officers and to avoid causing discrimination by them**.....”

[Emphasis Supplied]

¹² “*The Government of Balochistan through Secretary Energy Department, Quetta and another v. Muhammad Yasir*” (2025 SCMR 367) & “*Pir Imran Sajid and others v. Managing Director/General Manager (Manager Finance) Telephone Industries of Pakistan and others*” (2015 SCMR 1257).

¹³ “*Chairman Pakistan Ordinance Factories, POF Board Wah Cantt. V. Akhtar Tanveer and others*” (2025 SCMR 374)

¹⁴ “*Ahsan Khan v. Government of the Punjab and others*” (2023 CLC 825).

16. In view of the above, the Judgments referred to by learned counsel for respondent No.3 are clearly distinguishable in the facts and circumstances of the case in hand, and would therefore, have no precipitable relevance to the present case.

17. It is well settled by now that where a superstructure is built on illegal and void order(s), the same is meant to collapse if such an order is declared illegal and unlawful¹⁵. Considering this settled principle of law, since the Appointment Order dated 26.04.2025 is a direct offshoot of the Impugned Order dated 30.10.2024, which order was assailed before this Court and despite notice no plausible and lawful justification has been supplied for passing such order, therefore, considering the clear *mala fide* and violation of Rules by the official respondents for denying lawful rights of Petitioner, this petition is **allowed** and the Impugned Order dated 30.10.2024 and the Appointment Order dated 26.04.2025 are set-aside, the respondents are directed to proceed in accordance with law and decide the matter of appointment of Village Headman of Mauza Rodha Tehsil & District Khushab, strictly in terms of the Law, Rules and observations made above.

(KHALID ISHAQ)
JUDGE.

APPROVED FOR REPORTING.

(KHALID ISHAQ)
JUDGE.

Announced and dictated on 20.05.2025.
Signed on 16.06.2025.

*Ajmal Rana.

¹⁵ Yousaf Ali v. Muhammad Aslam Zia and 2 others (PLD 1958 SC 104); Mir Wali Khan and another v. Manager, Agricultural Development Bank of Pakistan, Muzaffargarh and another (PLD 2003 SC 500); Moulana Atta-ur-Rehman v. Al-Hajj Sardar Umar Farooq and others (PLD 2008 SC 663); Vice Chancellor Agriculture University, Peshawar and others (2024 SCMR 527); Superintendent of Police, Headquarters, Lahore and others v. Ijaz Aslam and others (2024 SCMR 1831); Ghulam Mustafa Lund v. National Accountability Bureau through Chairman, Islamabad and others (PLD 2024 SC 54)